

Further, Select asserts the settlement was reached in good faith as an arm's length transaction. Maxwell Decl., ¶ 5. Finally, under Code of Civil Procedure section 877.6, "the party asserting the lack of good faith shall have the burden of proof on that issue." In the absence of any opposition to this motion, this burden has not been met.

Accordingly, the Court finds that the settlement was made in good faith.

**4. CU0002045 California Fair Plan Association vs. Gregory James Gallup
(deceased), et al.**

The Court grants the motion of Defendant Joan Gallup, Successor-in-Interest to the Estate of Gregory James Gallup, for judgment on the pleadings.

Requests for Judicial Notice

Defendant's unopposed requests for judicial notice are granted.

Legal Standard

A party may bring a motion for judgment on the pleadings ("MJOP") after filing an answer and the time to demurrer has expired. Code Civ. Proc. § 438(b)(1) and (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548. If the moving party is the defendant, then a MJOP is limited to the grounds the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. Code Civ. Proc. § 438(c)(1)(B). The grounds for a MJOP shall appear on the face of the pleading or from any matter judicially noticed. Code Civ. Proc., § 438(d). Essentially, a MJOP performs the same function as a general demurrer, *i.e.*, it attacks only the defects disclosed on the face of the pleading or by matters that are judicially noticed. *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999. "In deciding or reviewing a judgment on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged." *Fire Ins. Exch. v. Super. Ct.* (2004) 116 Cal.App.4th 446, 452.

Discussion

Defendant argues that: California Fair Plan Association (CFPA), a plaintiff seeking damages allegedly caused by a decedent's negligence or breach, failed to file a timely creditor's claim; failed to allege in its complaint that it did so, and the liability of a successor-in-interest pursuant to Code of Civil Procedure section 377.40 exists only subject to Probate claim procedures. In opposition, Plaintiff argues Probate Code section 13550, *et seq.*, allows a suit against a surviving spouse for a deceased spouse's debts. Defendant has the better argument.

"An action may not be commenced against a decedent's personal representative on a cause of action against the decedent unless a claim is first filed as provided in this part [4. Creditor Claims] and the claim is rejected in whole or in part." Prob. Code § 9351. Thus, in general, a claim may not be pled against a decedent's estate, and a pending lawsuit against a decedent at time of death cannot be continued against the estate, unless the plaintiff has filed a creditor's claim in the probate proceedings. Prob. Code § 9000 *et seq.*

“Under California law, there are two methods for recovering damages from a deceased [individual].” *Pelayo v. City of Downey*, 570 F.Supp.2d 1183, 1192 (C.D. Cal. 2008). Where, as is the case here, “the decedent’s property is distributed through a probate administrator in the probate court, the plaintiff must first file [a claim in probate court.” *Id.*; see Prob. Code § 9351. “Section 9351 of the California Probate Code states that ‘[a]n action may not be commenced against a decedent’s personal representative on a cause of action against the decedent unless a claim is first filed as provided in this part and the claim is rejected in whole or in part.’ ... Filing a suit against an estate is not equivalent to filing a probate claim.” *Van Ort v. Estate of Stanewich* (9th Cir. 1996) 92 F.3d 831, 841 (applying California Law). A “[c]laim” includes a “demand for payment ... whether due, not due, accrued or not accrued, or contingent, and whether liquidated or unliquidated [including] [l]iability of the decedent, whether arising in contract, tort, or otherwise.” Prob. Code § 9000(a)(1). “A party with a remedy at law against a decedent for [a claim] must proceed upon the theory that he or she is a creditor of the deceased, having a claim against the estate, and is subject to the provisions of the Probate Code requiring the presentation of claims to the executor or administrator.” *Wilkison v. Wiederkehr* (2002) 101 Cal.App.4th 822, 833-834; see Prob. Code § 9002(b). “In the absence of such presentation, an action on the [claim] is barred.” *Id.* at 834; see Prob. Code § 9002(b).

Plaintiff does not dispute that Plaintiff has not followed the procedure specified in Code of Civil Procedure section 377.40. Rather, Plaintiff argues it is permitted to continue the action against Defendant as decedent’s surviving spouse under Probate Code section 13550. The Court is not persuaded.

Probate Code section 13550 states, “[e]xcept as provided in Sections 11446, 13552, 13553, and 13554, upon the death of a married person, the surviving spouse is personally liable for the debts of the deceased spouse chargeable against the property described in Section 13551 to the extent provided in Section 13551.” “Subject to certain exceptions and limitations, Probate Code sections 13550 and 13551 make a surviving spouse personally liable for the debts of the deceased spouse, but only to the extent such debts are chargeable against the community property of both spouses and the separate property of the deceased spouse passing to the surviving spouse *without formal probate administration.*” *Collection Bureau of San Jose v. Rumsey* (2000) 24 Cal.4th 301, 306 (italics added). “[A] surviving spouse who receives a decedent’s property *without administration* becomes personally liable for decedent’s debts chargeable against such property, within limits.” *Estate of Bonanno* (2008) 165 Cal.App.4th 7, 20 (citing Prob. Code § 13550, *et seq.*) (italics added); see also *Spurr v. Spurr* (1979) 88 Cal.App.3d 614, 619 (“In effect, [Probate Code] section 205 [predecessor to Probate Code section 13550] authorizes an action against the surviving spouse, *in lieu of an action against the estate*, where the deceased spouse’s assets *have not been subjected to formal probate administration.*”) (emphasis added).

At bar, Defendant has established the estate has commenced probate administration and there is no dispute Plaintiff has not submitted a creditor’s claim. RJN, H-K. Now, Plaintiff’s opposition attempts to reframe disputed tort damages as an attempt to recover a debt. That is not tenable. as the action concerns solely a claim for damages arising from alleged torts. Plaintiff provides no persuasive authority suggesting that “debt” as used in Probate Code section 13550 is intended

to include disputed claims for tort damages particularly when formal probate administration has commenced.

CFPA failed to file a timely and proper creditor's claim to the administrator of the estate. As such, its action is now barred. Plaintiff has failed to establish that Probate Code section 13550 *et seq.*, provides a basis for Plaintiff to continue this pending action against Decedent's surviving spouse. The Court likewise is not persuaded that there is a reasonable possibility the defect at issue can be remedied by amendment.

Defendant's motion for judgment on the pleadings is granted without leave to amend.

5. CU0002229 Krystal Ukoh, et al. vs. State of California, et al.

Plaintiffs' motion to compel further responses to request for production of documents is denied. However, Defendant Caltrans shall amend its responses to be code-compliant as described in the Joint Status Report within ten (10) days.

Legal Standard

An agreement to comply with a document demand must state whether the responding party will be complying "in whole or in part." Code Civ. Proc., § 2031.220. In addition, the response must indicate whether any documents are being withheld based on an asserted objection. Code Civ. Proc., § 2031.240(b). "A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand." Code Civ. Proc., § 2031.230. "This statement shall also [among other things,] specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party." *Ibid.*

On receipt of the response to a document demand, the demanding party may move to compel a further response if any of the following apply: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. Code Civ. Proc., § 2031.310(a).

The motion must set forth specific facts showing good cause justifying the discovery, and it must be accompanied by a separate statement. Code Civ. Proc., § 2031.310(b); Cal. Rules of Court, rule 3.1345. Absent a claim of privilege or attorney work product, the burden of showing good cause may be met by a fact-specific showing of relevance. Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 8:1495.6. To establish "good cause," the burden is on the moving party to show both: relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case); and specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). *Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117. "If 'good cause' is shown by the moving party, the burden is then on the responding party to justify any objections made to document disclosure." Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 8:1496.